

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 05/27/2026

Case #	Case Name	Tentative
01415299	Campbell – Trust	TENTATIVE RULING Case: Campbell – Trust 01415299 Calendar No.: 1 Date: 05/27/26 MOTION TO STRIKE (ROA 73) Petitioner Daniel Campbell ("Petitioner") moves to strike Objections filed on 4/21/25 (ROA 21) by Respondent Christine Campbell ("Respondent"). The motion is DENIED in part and GRANTED in part. This motion is made pursuant to Code of Civil Procedure section 436, which sets forth grounds for the court to strike a pleading as follows: The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strikeout any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Emphasis added.) Petitioner moves to strike the Objections in their entirety on the ground that the Objections fail to admit or deny specific allegations contained in the Petition as required by Code of Civil Procedure section 431.30.

		Code of Civil Procedure section 431.30 pertains to complaints filed in a civil action. The probate court applies the Code of Civil Procedure, except to the extent that the Probate Code provides otherwise. (Prob. Code § 1000.) The Probate Code is not silent as to how a person may respond to a petition. It provides that an interested person may make a response or objection, in writing or orally, before or at the hearing. (Prob. Code section 1043(a) and (b).) The court is not persuaded that the absence of a specific format requirement for a writing in Probate Code section 1043(a) requires the imposition of the format requirements for an answer set forth in Civil Procedure section 431.30. Code of Civil Procedure section 431.30 narrowly governs an answer to a complaint, while Probate Code section 1043 broadly governs any kind of response or objection to a petition, including a demurrer. (See <i>Goebner v. Superior Court</i> (2025) 110 Cal.App.5th 1105, 1112.) Thus, the motion to strike the Objections in their entirety for failing to comply with Code of Civil Procedure section 431.30 is denied. Petitioner further moves to strike the sentence on page 10, lines 3-5 of the Objections which states as follows: "Further, because Daniel's Petition contesting the Trust and Amendment is without any probable cause, she has violated the no-contest clause and therefore has forfeited any gift or interest that would have gone to her." While the statement may or may not constitute a request for affirmative relief, the statement is irrelevant for purposes of responding to the Petition. Thus, the motion to strike such portion of the Objection is granted. Moving party is ordered to give notice of this ruling.
01355718	Smith – Trust	TENTATIVE RULING Case: Smith – Trust 01355718 Calendar No.: 3 Date: 05/27/26 MOTION TO DISQUALIFY ATTORNEY (ROA 209) Petitioner Brian Alexander Smith, in propria persona, moves to disqualify Bezaire & Leathers LLP, including attorneys Evelyn Leathers and Sherlock Lau, from representing Lou Ann Kelly and Michael Kelly. The motion is made pursuant to